

## 25TRCV02589 25TRCV02589

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-09

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=SBA%2CB%2C07%2F09%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C07%2F09%2F2026)

Source SHA-256: 8f395c99ad5990e065a622dd1860ef4b7005ec3ad614f3bf53697ee3a1162884

Case Number: 25TRCV02589 Hearing Date: July 9, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

JOSE

LUIS MERINO, et al.,

Plaintiffs,

Case No.:

25TRCV02589

vs.

[Tentative]

RULING

KENNTEH

ONEIL,

Defendant.

Hearing

Date: July 9,  
2026

Moving Parties: Defendant Kenneth O'Neil

Responding

Party: Plaintiffs Jose Luis Merino and Andres Merino Alvarado

Motion

to Strike Punitive Damages

The Court considered the moving, opposition, and reply papers.

RULING

The motion to strike is DENIED.

Defendant is ordered to file an answer within twenty  
days.

BACKGROUND

On August 4, 2025, Jose Luis Merino and Andres Merino Alvarado filed a complaint against Kenneth O'Neil for motor vehicle negligence, general negligence, and intentional tort based on an incident that occurred on March 16, 2024 at S. Pacific Coast Highway and Prospect Avenue, Redondo Beach.

On April 16, 2026, the Court granted with leave to amend defendant's motion to strike punitive damages.

On May 6, 2026, plaintiffs filed a FAC for (1) motor vehicle negligence, (2) general negligence and (3) intentional tort.

LEGAL

AUTHORITY

“The

court may, upon a motion . . . , or at any time in its discretion, and upon

terms it deems proper: (a) Strike any

irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any

pleading not drawn or filed in conformity with the laws of this state, a court

rule, or an order of the court.” CCP

§436(b).

CCP

§431.10 states: “(a) A material

allegation in a pleading is one essential to the claim or defense and which

could not be stricken from the pleading without leaving it insufficient as to

that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to

the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise

sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the

complaint or cross-complaint.

(c) An

‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in

Section 436.”

The

grounds for moving to strike must appear on the face of the pleading or by way

of judicial notice. CCP §437.

## DISCUSSION

Defendant Kenneth O’Neil requests that the Court strike the

FAC at page 3, section 10 “exemplary damages,” page 3, section 14 “punitive

damages,” and page 10 exemplary damages attachment.

Under

the causes of action for general negligence and intentional tort, the FAC

alleges that on March 16, 2024 at S. Pacific Coast Hwy and Prospect Ave.,

Redondo Beach, defendant was driving an Audi Q7 on a public roadway and

encountered plaintiffs that were operating minibikes/ATVs on the same public roadway. Defendant made several attempts to strike other individuals but ultimately only struck plaintiffs. Defendant's actions were grossly negligent and extremely reckless with no regard to the possibility of loss of human life. On information and belief, plaintiffs assert that defendant was maliciously attempting to run them down due to defendant's frustration with plaintiffs being on the roadway. Defendant made several passes nearly hitting other individuals, executed a U-turn and aimed his car directly at plaintiffs before eventually hitting them. Defendant's actions were not only extremely negligent and reckless they were intentional with the express purpose being to harm plaintiffs.

Defendant argues that the allegations are conclusory and insufficient to support an award for punitive damages and that there are no specific facts alleged to demonstrate malice.

Defendant contends that there are no allegations detailing specific facts, such as the speed and manner in which defendant was driving, that defendant engaged in outrageously hazardous driving or allegations of threats, verbal statements of intent, prior disputes with plaintiffs, or any other aggravating facts demonstrating intentional conduct.

In opposition, plaintiffs argue that the allegations are adequate. They assert that defendant "tried to run Plaintiffs down and kill them."

In reply, defendant reiterates that the allegations are conclusory and merely describe plaintiffs' characterization of defendant's driving and that they fail to rise to the level of being "despicable."

The Court rules as follows:

Civil Code §3294 authorizes the recovery of punitive damages in non-contract cases where "the defendant has been guilty of oppression, fraud, or malice . . . ." To state a claim for punitive damages under Civil Code §3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. *Smith v.*

*Superior Court* (1992) 10 Cal. App. 4th 1033, 1042. The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. *Id.* A motion to strike may lie where the facts

alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. *Turman v. Turning Point of Central California* (2010) 191 Cal. App. 4th 53, 63.

The

Court in *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-95, found that “[s]omething more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or ‘malice,’ or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.”

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code §3294(c)(1).

As the

Court noted in *College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 713, Section 3294 was amended in 1987 to require that, where malice is based on a defendant’s conscious disregard of a plaintiff’s rights, the conduct must be both despicable and willful. The Court in *College Hospital* held further that “despicable conduct refers to circumstances that are base, vile, or contemptible.” *Id.* at 725 (citation omitted).

The

Court finds that the allegations are sufficient to show malice as plaintiffs allege that defendant intended to injure them with his vehicle as he made several passes nearly hitting other individuals, executed a U-turn and aimed his car directly at plaintiffs.

The motion is DENIED.

ORDER

The

motion to strike is DENIED.

Defendant

is ordered to file an answer within twenty days.

Plaintiffs

are ordered to give notice of ruling.